
2:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S SECOND AMENDED MOTION TO COMPEL FURTHER RESPONSES REGARDING THE DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS SET 5

TENTATIVE RULING:

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the
Defendant's Responses to Request for Admissions Set 5, filed June 30, 2025, is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

In his Notice of Motion, plaintiff did not provide the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) On January 8, 2026, plaintiff filed an initial version of the instant "Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5." Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,

2026.) Plaintiff filed a motion directed to compelling further responses to the RFA Set No. 5, a declaration, and a separate statement on March 11, 2026; a first amended version on March 25, 2026; and then filed the instant Motion, which includes a declaration and separate statement on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, Feb. 26, 2026, at pp. 1-2.)

The Commissioner stated that "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (Minute Order, Feb. 26, 2026, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One. (*Id.*, at p. 3; see Minute Order, Dec. 17, 2025.) Accordingly, the Commissioner noted that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, Feb. 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to all 52 RFAs in Set No. 5.

The motion and the reply were each filed a day late. (Code Civ. Proc., § 1005, subd. (b).) Defendant waived objections to the tardiness of the motion by timely filing an opposition. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is admonished to comply with the California Rules of Court.

In opposing the motion, defendant argued, in part, that "Plaintiff submitted a declaration for additional discovery with this set of discovery," but that the declaration fails to comply with statutory requirements, including those in Code of Civil Procedure, section 2033.040. (Opp., at pp. 4:27-6:5.) The Declaration of Danielle K. Lewis in support of defendant's Opposition stated that a copy of plaintiff's RFAs Set No. 5 were attached as Exhibit C. (Lewis Decl., ¶ 5.) However, defendant did not attach Exhibit C — or any of the other exhibits referenced — to the Lewis Declaration.

Plaintiff's declaration for additional discovery was not properly before the court. Accordingly, the hearing of this motion was continued from July 22, 2026 to August 12, 2026 because the court lacked sufficient evidence to rule. The parties were ordered to do the following:

- No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's RFAs Set No. 5 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
- No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.

On July 29, and August 5, 2026, respectively, the parties filed their supplemental papers. (Also on August 5, 2026, plaintiff filed amended supplemental papers, but did not explain what was amended.) Defendant filed a declaration which attached all the plaintiff's discovery requests, including RFAs No. 5, which included his declaration for additional discovery. Plaintiff contended that serving 52 requests for admissions was justified because "there are dozens of potential witnesses and dozens of potential locations of relevant evidence. In these requests for admission I am attempting to determine which witnesses have and have not been found, and I am attempting to determine which locations have and have not been searched. . . ." (Lewis Supp. Decl., filed July 29, 2026, exh. C, at pp. 122-123 of 528.)

B. Legal Standards

"California courts have recognized that requests for admission differ in purpose from other commonly used discovery devices, such as interrogatories, document demands, or depositions. Although the requests for admission mechanism is included in the Civil Discovery Act (Code Civ. Proc., § 2016.010 et seq.), it has long been recognized that requests for admission are 'not really a discovery procedure.'" (*City of Glendale v. Marcus Cable Assocs., LLC* (2015) 235 Cal.App.4th 344, 352 (*City of Glendale*), citation omitted.) That is, "requests for admission serve to narrow discovery, eliminate undisputed issues, and shift the cost of proving certain matters. As such, the requests for admission mechanism is not a means by which a party obtains additional information, but rather a dispute-resolution device that eliminates the time and expense of formal proof at trial." (*Id.*, at pp. 353-354.)

A party may propound up to 35 RFAs, excluding those relating to the genuineness of documents. (Code Civ. Proc., § 2033.030, subd. (a).) If the proponent seeks to propound additional RFAs, they must serve a declaration explaining the total number previously propounded, the specific statutory reason for the additional RFAs, and reasons justifying the

additional number of requests. (*Id.*, §§ 2033.040, 2033.050.) Absent a sufficient declaration, the responding party need only respond to the first 35 RFAs. (*Id.*, § 2033.030, subd. (b).)

C. Discussion

Plaintiff's declaration does not demonstrate that more than 35 RFAs are warranted because of "the complexity or the quantity of the existing and potential issues" in this lawsuit. (Code Civ. Proc., § 2033.040, subd. (a).) The lawsuit involves an alleged assault on plaintiff by a fellow passenger on a bus operated by defendant. The case does not involve complex issues or a large number of issues. Moreover, the requests seek discovery, and not admissions that are intended to narrow the facts in dispute and streamline the trial.

Plaintiff has not shown in his moving papers, or on reply, or in his supplemental reply that there is any basis for requiring defendant to respond to more than 35 RFAs in this case. Moreover, in reviewing the RFAs, Set No. 5 and the responses (see Lewis Supp. Decl., filed July 29, 2026, exh. D, beginning at p. 124 of 528), the court notes that the requests do not ask defendant to admit any facts or legal theories with the objective of narrowing issues for trial. Rather, as admitted in plaintiff's declaration, they seek discovery of the identities of witnesses as well as "locations have and have not been searched." As noted above, RFAs are not a discovery device but are "a dispute-resolution device that eliminates the time and expense of formal proof at trial." (*City of Glendale, supra*, 235 Cal.App.4th at p. 354.) Plaintiff's RFAs are not addressed to narrowing the issues for trial, but are addressed to obtaining evidence. That is not what RFAs are designed to do. Accordingly, the court denies the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S THIRD AMENDED MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
SET NO. 12

TENTATIVE RULING:

Plaintiff's Third Amended Motion to Compel Further Responses to Plaintiff's Special Interrogatories Set #12 is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A. Background

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On November 14, 2025, plaintiff served defendant with his SROGs Set No. 12, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. (Supp. Lewis Decl., ¶ 18, exh. A.) Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.